

#	Case Name	
1	Kennedy vs. Samaha 2025-01507932	1. Demurrer to Complaint The demurrer of defendant Youssef Merhi, erroneously sued and served as Youseff Mehri, to plaintiff Daniel Kennedy’s complaint is sustained with 21 days leave to amend. Plaintiff has now paid his first appearance fee. [ROA #40.] He appeared at the prior hearing without objection and was properly served with notice of this continued hearing. No opposition to the demurrer has been filed. It appears that Plaintiff may have served a first amended complaint (“FAC”) as Defendant attempted to file a demurrer to an amended complaint. [ROA #30.] Failure to oppose the demurrer may be construed as having abandoned the claims. <i>See Herzberg v. County of Plumas</i> (2005) 133 Cal. App. 4th 1, 20 (“Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue.”); <i>Quantum Cooking Concepts, Inc. v. LV Associates, Inc.</i> (2011) 197 Cal.App.4th 927, 934 (trial court was justified in denying post-trial motions for failure to provide adequate memorandum; “Rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide.”). Additionally, the court may construe the absence of a memorandum as waiver of all grounds not supported. CRC 3.1113(a). Further, Plaintiff’s service of a FAC – analogous to a failed attempt to file a FAC in response to a demurrer – is an implicit concession as to the merits of the demurrer. Accordingly, the demurrer is sustained. Defendant to give notice.

		2. Case Management Conference – cont. to 7/6/2026 at 9:00 a.m. 3. Order to Show Cause – cont. to 7/6/2026 at 9:00 a.m.
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